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A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e); CCP 430.30(a); and Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

But in the instant matter, the Complaint quite clearly states facts that are sufficient to support the claim that Defendant breached the terms of a contract. And the court, for the purposes of a demurrer, assumes these allegations to be true. That Defendant believes that there does not exist any outstanding balance appears to be an evidentiary issue. Disputes over evidence, however, are not appropriate for a demurrer.

Disposition

Defendant's Demurrer is overruled.

Plaintiff to file Order, and to serve copies of filed Order on Defendant.

13. 9:00 AM CASE NUMBER: L26-01968
CASE NAME: NEDA VALIASHRAFI VS. HUDSON INSURANCE COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ATOZ PLUMBING HEATING SERVICES, INC.

TENTATIVE RULING:

Defendants Azizi and A to Z Plumbing filed a Demurrer to the Complaint.

Plaintiff filed a Response, on 5/11/26, in which they simply provided notice of a motion to seek leave to file an amended complaint.

Background

The Complaint in the instant matter ("Complaint"), filed on 3/19/26, alleges one cause of action against Defendant Hudson Insurance for recovery on a contractor licensure bond. The cause stems from plumbing work done by Defendant Azizi for Plaintiff. Plaintiff alleges that Azizi ran a plumbing company, A to Z Plumbing (also a named defendant, "A to Z"), performed plumbing work for Plaintiff in a negligent and fraudulent manner, caused damage to Plaintiff's property, was insured by Hudson, and Plaintiff seeks redress in the form of the insurance bond.

The only reference to particular work that was done in a negligent manner is the allegation that Azizi represented that he could obtain a permit for the work after the work was completed. Plaintiff alleges that this was not the case, that the permit had to be

obtained beforehand, and the consequence was that Plaintiff had to deconstruct the completed plumbing work.

Defendants Azizi and A to Z make two arguments in their Demurrer. The first is the broad argument that the causes of action are, essentially, not sufficiently specific, under Sections 430.10, (e) and (f), of the CCP. Most importantly, these Defendants contend that the sole cause of action fails to reference either of these Defendants, and only alleges a claim against Defendant Hudson.

The second is that Plaintiff is already seeking relief from Defendants in a pending action involving the same facts and causes of action. The court is confused by this, however, because the other matter to which Hudson cites is, apparently, the instant matter. They provide the same docket number and attach a copy of the Complaint. So, the court won't entertain this argument.

There is no evidence that Defendants Azizi or A to Z made an attempt to meet and confer with Plaintiff about the issues presented in this Demurrer.

Plaintiff seems to concede the matter in their Response.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.*

A demurrer is appropriate when the pleading is uncertain, ambiguous or unintelligible. (CCP 430.10(f).)

For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

Section 430.41 of the CCP requires that, before filing a demurrer, the filing party meet and confer with the opposition. However, a failure to do so does not factor into the court's decision on the demurrer. (CCP 430.41(a)(4).)

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment.

Id.

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

In the instant matter, though there are allegations directed toward Azizi and A to Z, the sole cause of action is not directed at either of them. The theory under which Plaintiff seeks relief from these two defendants is wholly unclear. Is it negligence? Fraud? Both? And when did the alleged conduct occur? Was it the same year in which Plaintiff sought the general contractor services of defendants?

This uncertainty puts Defendants Azizi and A to Z at a disadvantage. Under which legal theory must they prepare a defense?

The Demurrer as to these two Defendants will be sustained.

The court will grant Plaintiff leave to amend.

Disposition

Defendants’ Demurrer to the sole count in the Complaint is sustained.

Plaintiff to file amended Complaint within 10 days of the written notification of this Order.

Defendant to file Order and serve copy of filed Order on Plaintiff.

14. 9:00 AM CASE NUMBER: MSL19-06700

CASE NAME: AUTOVEST VS. ATAM

***HEARING ON MOTION IN RE: NTC AND MTN TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

FILED BY: ATAM, IRENE

***TENTATIVE RULING**

Defendant has filed a Motion to set aside a default judgment, but has not provided notice to the Plaintiff.

Disposition